SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 10842 of 2018 (YEAR: 2023)

CORAM: K.M. JOSEPH, AJAY RASTOGI, ANIRUDDHA BOSE, HRISHIKESH ROY, C.T. RAVIKUMAR

N.N. Global Mercantile Pvt. Ltd.
... Appellant(s) / Petitioner(s)
Versus
Indo Unique Flame Ltd.
... Respondent(s)

Acts Referred:	Indian Stamp Act, 1899, Arbitration and Conciliation Act, 1996
Sections:	Section 35 Stamp Act, Section 11 Arbitration Act

JUDICIAL HEADNOTE & SUMMARY

Historical ruling on unstamped arbitration clauses which held such agreements unenforceable, subsequently overruled by the unanimous 7-judge curative bench in December 2023.

RATIO DECIDENDI

The Court held that: Historical ruling on unstamped arbitration clauses which held such agreements unenforceable, subsequently overruled by the unanimous 7-judge curative bench in December 2023. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in N.N. Global Mercantile Pvt. Ltd. v. Indo Unique Flame Ltd. (Civil Appeal No. 10842 of 2018) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Stamp Act, 1899, Arbitration and Conciliation Act, 1996, particularly Section 35 Stamp Act, Section 11 Arbitration Act. Historical ruling on unstamped arbitration clauses which held such agreements unenforceable, subsequently overruled by the unanimous 7-judge curative bench in December 2023.

OPERATIVE ORDER

ORDER: Decided